

Module2

AI Governance by Human Rights-Centered Design, Deliberation and Oversight: End to Ethics Washing, The Incompatible Incentives of Private-Sector AI. Normative Modes: Codes and standards. The Role of Professional Norms in the Governance of Artificial Intelligence.

- As you know, Artificial Intelligence is becoming powerful — it is used in healthcare, banking, hiring, social media, and even self-driving cars.
- But if AI becomes powerful without control, it can cause serious problems.
- So, we need rules and systems to control AI. That is called **AI Governance**.

AI Governance

- **AI Governance** means creating proper rules, policies, and monitoring systems to ensure that Artificial Intelligence — which is widely used in healthcare, banking, hiring, social media, and self-driving cars — is developed and used safely, fairly, and responsibly, so that it does not cause harm or misuse.

Human Rights–Centered Design

- While designing AI systems, we must make sure they respect basic human rights.
- Human rights include:
 - Right to privacy
 - Right to equality (no discrimination)
 - Right to safety
 - Freedom of expression
- These rights are recognized globally in the Universal Declaration of Human Rights.

- **Now think about this:**
- If an AI hiring system rejects candidates only because they are women, is it correct?
No. It violates equality.
- If a social media AI collects your personal data without permission, is it correct?
No. It violates privacy.
- So before writing code, engineers must ask:
‘Can this AI harm someone’s rights?’
- That is **Human Rights–Centered Design**.
- In simple words:
 - **Design AI to protect people, not harm them.**

Deliberation

- **Deliberation means discussion before decision.** AI should not be designed only by engineers.
- We must involve:
 - Engineers
 - Lawyers
 - Government
 - Social experts
 - Public
- For example, before using facial recognition in public places, we must ask:
 - Is it safe?
 - Can it misuse data?
 - Is it fair to everyone?
- Many countries are creating AI laws after long discussions. For example, the European Union AI Act was created after debate about AI risks.
- So deliberation means:
 - Discuss AI decisions openly before implementation.

Oversight

- Oversight means continuous monitoring and supervision. Even if we design AI carefully, problems may still happen after deployment.
- So we need:
 - Regular audits
 - Testing
 - Monitoring
 - Accountability
- For example, if a self-driving car causes an accident:
 - Who is responsible?
 - Was it tested properly?
- Organizations like the Federal Trade Commission monitor companies to prevent harmful practices.
- Oversight means:
 - AI should always be monitored and controlled.

Ethics Washing

- Ethics washing means:
- A company talks a lot about AI ethics, fairness, and responsibility — but in reality, it does not truly follow those principles.
- It is similar to “greenwashing” in environmental issues — where companies claim to be environmentally friendly but actually are not.
- In AI, ethics washing happens when companies:
 - Publish ethical guidelines
 - Create ethics boards
 - Talk about responsible AI
- But continue harmful practices like:
 - Biased algorithms
 - Privacy violations
 - Lack of transparency

Incompatible Incentives

- Private companies mainly focus on:
 - Profit
 - Growth
 - Competition
 - Market leadership
- But ethical AI requires:
 - Slower development
 - More testing
 - Transparency
 - Sometimes limiting powerful features
- So there is a conflict.
 - Companies want speed and profit.
 - Ethics requires caution and responsibility.
- These two goals can sometimes clash.

Example

- Imagine a company builds a powerful facial recognition system.
- If they release it quickly:
 - They earn profit
 - They beat competitors
- But if they test it properly:
 - It may take more time
 - It may reduce profits
- So sometimes companies prioritize business goals over ethics.
- That is why ethics washing happens — talking about ethics without fully practicing it.

- If ethics washing continues:
 - Public trust in AI decreases
 - People's rights may be violated
 - Harmful systems may spread
- Real AI governance requires:
 - ✓ Independent audits
 - ✓ Government regulation
 - ✓ Transparency
 - ✓ Accountability
- Ethics must be **implemented**, not just advertised.

What Are Normative Modes?

- In AI governance, normative modes are guidelines that tell organizations how they *should* behave while developing and using AI.
- They are not always strict laws, but they guide responsible behavior.

Codes :

- Codes are ethical guidelines or principles created by organizations, companies, or professional bodies.
- They explain:
 - What is right
 - What is responsible
 - What should be avoided

- For example, a company may create an AI ethics code saying:
 - AI must be fair
 - AI must not discriminate
 - User privacy must be protected
 - AI decisions should be transparent
- These are moral commitments.
- Codes focus more on **values and principles**, not **technical details**.

Standards

- Standards are more technical and structured.
- They provide:
 - Technical rules
 - Testing procedures
 - Safety requirements
 - Risk management methods
- Standards help ensure that AI systems are:
 - Safe
 - Reliable
 - High quality
- The International Organization for Standardization and the Institute of Electrical and Electronics Engineers develop such standards.
- Unlike codes, standards are more detailed and measurable.
- Sometimes governments adopt standards into law.

- **Difference Between Codes and Standards**
 - Codes tell us WHAT is right.
 - Standards tell us HOW to implement it correctly.
 - Codes = Ethical principles.
 - Standards = Technical implementation rules.

- **Why Are They Important in AI?**
- AI technology develops very fast.
Laws take time to be created.
- So before strict laws are made:
 - Codes guide ethical thinking.
 - Standards guide safe technical development.
- They help:
 - Reduce risks
 - Build public trust
 - Promote responsible AI development

- So, normative modes such as codes and standards are important tools in AI governance.
- Codes guide ethical behavior.
Standards guide technical safety and quality.
- Together, they help ensure AI systems are responsible, safe, and trustworthy.

The Role of Professional Norms in the Governance of Artificial Intelligence

- **AI Governance:**
 - AI governance refers to the frameworks, rules, policies, standards, and oversight mechanisms that guide the development and deployment of AI systems.
- **Objectives of AI Governance:**
 - Ensure safety
 - Promote fairness
 - Protect human rights
 - Ensure transparency
 - Establish accountability
- Governments play a key role in AI governance.
 - For example, the **European Union** introduced the **EU AI Act**, which regulates high-risk AI systems.
- However, governance is not limited to government laws.
- It also includes industry standards, organizational policies, and ethical guidelines.

- **Professional Norms:**

- Professional norms are shared standards of behavior, ethical principles, and expectations within a profession.
- They guide professionals in making responsible decisions, even in situations where laws are unclear or absent.

- **Examples:**

- Doctors follow medical ethics.
- Lawyers follow legal codes of conduct.
- Engineers follow safety standards.
- Similarly, AI professionals—such as data scientists, software engineers, and AI researchers—must follow ethical standards in their work.

Why Professional Norms Are Crucial in AI Governance

- **1. Technology Develops Faster Than Law**
 - AI evolves rapidly, while laws take time to be created and updated. Professional norms help fill this gap.
- **2. Preventing Harm**
 - AI systems can cause harm through:
 - Biased decision-making
 - Privacy violations
 - Misinformation
 - Unsafe automation
 - Ethical professionals take precautions before deployment.

3. Building Public Trust

- Trust is essential for AI adoption.
- Responsible professional conduct increases public confidence.

4. Internal Decision-Making

- Many ethical decisions happen within companies before products reach the market.
- Professional norms guide these internal choices.

Key Professional Norms in AI

a) Fairness

- AI should not discriminate based on race, gender, religion, caste, or economic status.

b) Transparency

- Users should know when AI is being used and understand how decisions are made.

c) Accountability

- Clear responsibility must exist for AI outcomes.

d) Privacy Protection

- Personal data must be handled securely and ethically.

e) Safety and Reliability

- AI systems must be tested thoroughly before public release.
- Organizations such as **IEEE** and **Association for Computing Machinery** have established ethical guidelines for computing professionals.

- **Real-World Example**
- Consider an AI-based hiring system.
 - If the training data contains historical bias, the system may unfairly reject certain groups.
- Professional norms require developers to:
 - Audit training data
 - Test for bias
 - Ensure explainability
 - Include human oversight
- Even if no law explicitly requires these steps, ethical responsibility demands them.

- **Challenges to Professional Norms**
 - Corporate profit pressures
 - Competitive markets
 - Lack of global ethical standards
 - Cultural differences
 - Weak enforcement mechanisms
- Despite these challenges, professional norms remain a critical pillar of AI governance.